

Dinesh Chandra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 March 2023 · WRIT - C No. 7179 of 2023 · **Disposed; theft recovery withdrawn, fresh order after hearing.**

HEADNOTE

Writ against demand notices for recovery of electricity-theft dues was disposed of after the licensee withdrew the recovery. The department was left at liberty to pass a fresh order only after hearing the consumer and following the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Dinesh Chandra challenged three demand notices, dated 11 December 2019, 9 January 2020 and 11 January 2023, by which the electricity department sought to recover dues in a case of theft of electricity. In the writ before the Allahabad High Court, counsel for the department stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was given an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::9.1

Fresh theft-recovery order after hearing

HOLDING

Where the licensee withdraws demand notices for recovery of dues in a theft case, the writ is disposed of with liberty to pass a fresh order only after the consumer is heard and the procedure prescribed under the U.P. Electricity Supply Code, 2005 is followed. ¶ 1

PRINCIPLE TAGS

hearing-and-supply-code-before-fresh-order The Court did not try the theft demand. It recorded the licensee's withdrawal and confined any fresh order to a hearing and the procedure under the Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY AND QUANTUM OF ANY FRESH THEFT-RECOVERY DEMAND

The impugned recovery was withdrawn. The Court did not examine the merits and left a fresh order to the licensee after hearing. ¶ 1